



File No.: EXP202316567

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On September 21, 2023, a complaint was filed with the Spanish Agency for Data Protection for a possible infringement attributable to A.A.A. with NIF ***NIF.1 (hereinafter, the complained party).

The facts brought to the attention of this authority are as follows:

The complainant is a person who provided their CV to the company AUTOMERCURY (www.automercury.es) but subsequently expressed their desire to exercise the right of opposition (they did not formally exercise it, they said they wanted to do so, and for that purpose, they requested that a model be provided to them). They complain because they have not received a response providing information on how to exercise their rights regarding the processing of their personal data, beyond being told that their data would not be communicated to third parties. In connection with the above, the privacy policy available on the website does not comply with the provisions of Article 13 of the GDPR, as the data controller is not even properly identified.

Along with the written complaint, the following is submitted:

- Email dated 09/18/2023 sent to AUTOMERCURY (automercury.es@gmail.com) providing their CV.
- Email dated 09/19/2023 sent to AUTOMERCURY (automercury.es@gmail.com) requesting the model for managing the rights of the data subject.
- Email dated 09/21/2023 sent to AUTOMERCURY (automercury.es@gmail.com) reiterating the request and expressly requesting the legal model to exercise the right of opposition.
- Response email received from AUTOMERCURY indicating that they have no interest in sending their data to third parties.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the said complaint was forwarded to AUTO ROQUETAS, S.L., with NIF B04123832, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

The electronic notification of the transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), expired due to lapse, as the deadline for appearance was exceeded on 12/01/2023, as stated in the acknowledgment of receipt in the file.

On 12/04/2023, the transfer was reiterated by postal notification to the entity AUTO ROQUETAS, S.L. with address ***ADDRESS.1. It was returned as unknown on 12/14/2023.

THIRD: On December 21, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VIII of the LOPDGDD.

As a result of the actions carried out, the following points have been noted:

On 08/06/2024, a query was made on Google Maps regarding (...). The business named AUTOMERCURY was located, whose storefront refers to the website www.automercury.es and the

contact phone number ***PHONE.1. A capture of the Google Maps results and Google Street View is incorporated into the file by means of a Diligence.

On 08/06/2024, a query was made regarding the phone number ***PHONE.1 on the website of the National Commission of Markets and Competition (CNMC)

<https://numeracionyoperadores.cnmc.es/portabilidad/movil>. The result of the query indicates that the operator of that phone number is XFERA MÓVILES, S.A.U. (Diligence 2)

On that date, a request for information was sent to XFERA MÓVILES S.A.U. requesting the ownership of the subscriber line of the number ***PHONE.1 specifying name/company name, NIF/CIF, and address.

On 08/14/2024, a response was received with registration number REGAGE24e00061491843. They provided the following information:

"...Owner: A.A.A. NIF: ***NIF.1 Address: ***ADDRESS.1

...This person has been a client since 2020, without having been ported to date."

On 08/06/2024, a request was sent to AUTO ROQUETAS, S.L. via electronic notification requesting the following information:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/10

1. Have you received the request for the exercise of data protection rights and, if so, with what results?
2. If you have responded to the request for the exercise of rights from the claimant, please provide evidence of the response given.
3. In the event that the right of access, rectification, or erasure has been exercised, please inform whether the requested data is blocked or not.
4. Have you made any decision regarding the complaint that is being transferred or do you plan to make one?
5. If you have responded to the claimant regarding the transfer of their complaint by this Agency, please provide evidence of the response given.
6. Report on the causes that led to the incident that originated the complaint.
7. Report on the measures taken to prevent similar incidents from occurring, including implementation dates and controls carried out to verify their effectiveness.
8. Indicate the person responsible for the activity of the website www.automercury.es
9. Any other information you consider relevant.

The notification has expired due to lapse on 17/08/2024.

On 16/08/2024, a query was made on the website <https://monitoriza.axesor.es/> for the companies located at the address: (...). The following results were obtained: (Diligence 3)

- B.B.B. with NIF ***NIF.2 and activity "Sale of motor vehicles"

- A.A.A. with NIF ***NIF.1 and activity "Retail trade of cosmetic and hygienic products in specialized establishments"

On 16/08/2024, the previous request was resent by postal notification to the investigated B.B.B. at the address ***DIRECCIÓN.1. It was returned on 09/09/2024 for "Absent in delivery."

On 03/09/2024, the previous request was resent by postal notification to the investigated A.A.A. at the address ***DIRECCIÓN.1. It was delivered on 12/09/2024.

On 10/09/2024, a written response was received from the respondent, A.A.A., in which the following statements were made:

- That on September 18, they received the CV from the claimant, without having previously requested it, without having a public job offer or intention to hire any candidate.
- That the information received was immediately deleted from the email and the server, as they had no interest in processing and storing such information.
- That this circumstance was communicated by email on September 21, 2023. They provide what they claim is a copy of the email sent to the claimant.

C/ Jorge Juan, 6

- That the person responsible for the processing of the website www.automercury.es is Ms. A.A.A.
- That it is a family business that has no employees, in which she, her husband, and her daughter work.

On 17/09/2024, a capture of the section "Legal notice and privacy policy" of the Automercury website was added to the file via Diligence 4. URL: <https://automercury.es/aviso-legal-y-politica-de-privacidad/>
FOURTH: On November 15, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the respondent for the alleged infringement of Article 13 of the GDPR, classified under Article 83.5.b) of the GDPR.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was made on 02/12/2024 as recorded in the acknowledgment of receipt in the file.

SIXTH: On 02/12/2024, a written statement of allegations was received from the respondent, in which the following is indicated:

It is brought to the attention of this Agency that all necessary corrections have been made to comply with current regulations and to rectify any deficiencies that may have existed in the processing and protection of data. Attached to this document is some documentation as an example of the various measures adopted, such as a screenshot of part of the rectified website, as well as an agreement with a new data processing company, and a document for processing CVs.

Attached to the statement of allegations is the following documentation:

- Document titled Additional information on data protection for the processing of CVs, which informs about the processing of personal data of the CVs received.
- Contract for adaptation to privacy regulations signed with the entity (...)

The object of the contract and the objective of the service is described in Clause 2 in the following terms:

The purpose of this contract is to describe the scope, general conditions, service description, activity programming, and technical and economic conditions that the CONSULTING FIRM agrees with the CONTRACTING PARTY.

The objective of the service is to adapt and update, in accordance with the provisions of Regulation (EU) 2016/679 of April 27, 2016 (hereinafter, GDPR) regarding the protection of natural persons in relation to the processing of

C/ Jorge Juan, 6

personal data and the free movement of such data and to Organic Law 3/2028, of December 5 (hereinafter, LOPDGDD), the processing of personal data carried out by the CONTRACTING party in its business/company, in order to guarantee the rights and freedoms regarding the protection of personal data of the interested parties, thus avoiding any sanctions at both economic and/or reputational levels.

-

Document that reflects the legal notice and privacy policy of the website www.automercury.es, for which the defendant is responsible, which includes a contact email, and whose section 4 - data protection - states the following:

Automercury complies with the guidelines of the GDPR 2016/679 and other regulations on data protection in force at any given time, and ensures the correct use and processing of users' personal data. To this end, alongside each personal data collection form, in the services that the user may

request from Automercury, it will inform the user of the existence and acceptance of the specific conditions for the processing of their data in each case, informing them of the responsibility of the file created, the address of the responsible party, the possibility of exercising their rights of access, rectification, cancellation, or opposition, the purpose of the processing, and the communication of data to third parties where applicable.

Furthermore, Automercury informs that it complies with Law 34/2002 of July 11, on Information Society Services and Electronic Commerce and will request your consent for the processing of your email for commercial purposes at all times.

In view of all that has been acted upon, by the Spanish Agency for Data Protection in the present procedure, the following are considered proven facts,

PROVEN FACTS

FIRST: The defendant is the owner of the website www.automercury.es, through which it carries out the processing of personal data for which it is responsible.

SECOND: The privacy policy informed on the website www.automercury.es did not include, at the date of initiation of the present warning procedure, the identification of the responsible party for the processing of personal data carried out through it, nor did it inform about a contact address to which to address for the exercise of rights regarding the protection of personal data.

THIRD: It is recorded in the file that the defendant has adopted various actions aimed at adapting the privacy policy of the internet domain for which it is responsible, as well as, in general, adapting the processing of personal data for which it is responsible to the regulations on personal data protection.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/10

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

According to Article 4.1 of the GDPR, "personal data" shall mean any information relating to an identified or identifiable natural person; an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

For its part, Article 4.2 of the GDPR defines the concept of "processing" of personal data as any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination, or any other form of making available, comparison or interconnection, restriction, erasure, or destruction.

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, the processing of personal data through the website www.automercury.es, for which the defendant is responsible, has been established as evidenced by the investigative actions carried out within the

framework of the present procedure.

III

Obligation not fulfilled. Information that must be provided when personal data is obtained from the interested party

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/10

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, in the following terms:

1. When personal data relating to a data subject is obtained, the data controller shall provide the data subject with all the information indicated below at the time the data is obtained:

- a) the identity and contact details of the controller and, where applicable, of their representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, a reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the controller access to personal data concerning the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the provision of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of failing to provide such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for which it was collected, they shall provide the data subject, prior to that further processing, with information on that other purpose and any pertinent additional information in accordance with paragraph 2. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

8/10

In the case at hand, at the time of initiating this warning procedure, the website for which the respondent is responsible did not have a privacy policy that complied with the provisions established by the aforementioned regulation. In this regard, the data controller was not properly identified, nor was information provided about the rights recognized for data subjects in matters of personal data protection, nor was an address offered for data subjects to exercise their rights. This circumstance prompted the claimant to send emails inquiring about the procedure for exercising their right to erasure.

In response to the initiation agreement of the warning procedure, the respondent has provided information about various initiatives undertaken aimed at i) providing a specific response regarding the processing of personal data to all interested parties who submit their curriculum vitae to participate in recruitment processes carried out by the respondent ii) adapting the privacy policy of their website www.automercury.es to the requirements of personal data protection regulations iii) generally adapting all personal data processing they carry out to the GDPR and the LOPDGDD, entering into a specialized consulting contract for this purpose.

In this case, although the actions taken should be positively assessed, we must point out that the infringement has been committed.

IV

Classification and qualification of the infringement

As noted, the respondent is considered responsible for the website www.automercury.es, which, at the time of initiating this warning procedure, did not provide the information related to the processing of personal data prescribed by Article 13 of the aforementioned GDPR.

Therefore, the known facts constitute an infringement attributable to the respondent of the provisions of that regulation.

Such infringement is classified under Article 83.5.b) of the GDPR, which states the following:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount: (...) b) the rights of data subjects pursuant to Articles 12 to 22;”

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72 of the LOPDGDD, which classifies the following conduct as very serious:

Article 72. Infringements considered very serious.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/10

1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following: (...) h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law.

V

Conclusion

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.b) of Article 58 “Powers” the following:

“Each supervisory authority shall have all of the following corrective powers:

(...) b) to issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...)”

It should be noted in this regard that the warning is configured as one of the powers granted by the

GDPR to the Supervisory Authorities and that, although it lacks a punitive nature, it does have a corrective nature in the sense of allowing the consideration of the unlawfulness of a conduct and thus achieving its correction and preventing a new commission of that possible infringing conduct in the future.

For all these reasons, in this case, considering the circumstances present in this procedure, it is deemed appropriate to issue a warning for the infringement of the aforementioned article.

Therefore, based on the above, by the Director of the Spanish Agency for Data Protection,

Thus, in accordance with applicable legislation and assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to A.A.A., with NIF ***NIF.1, for an infringement of Article 13 of the GDPR, classified under Article 83.5.b) of the GDPR.

SECOND: TO NOTIFY this resolution to A.A.A., with NIF ***NIF.1.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month at

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

10/10

counting from the day following the notification of this resolution or directly administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension terminated.

1403-16012024

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es